

A.16

Policy/Guideline Title:	SECONDMENT POLICY		
Executive Summary:	The policy sets out the principles and the process for secondments together with the responsibilities for all the parties involved both internally and externally to the Trust.		
Supersedes:	Secondment policy A.16		
Description of Amendment(s):	No changes		
This policy will impact on:			
Financial Implications:			
Policy Area:	People Division	Approval Date:	April 2023
Version Number:	2	Review Date:	January 2026
Issued By:	Kathryn Large, Senior HR Business Partner	Expiry Date:	April 2026
Author:	Michelle O’Sullivan, Senior HR Advisor	Impact Assessment Date:	
APPROVAL RECORD			
	Committees / Group	Date	
Consultation:	JCNC Operational Group	28 th March 2023	
Approved by Director:	Catherine Wills, Director of People	28 th March 2023	
Ratified by:	Operational Management Group	20 th April 2023	
Received for Information:			

A. 16 Secondment Policy



Compassion



Accountability



Respect



Integrity



Courage

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1. Introduction

The Trust believes that secondment enables employees to gain experience and exposure to a range of situations enabling them to develop additional knowledge, skills and behaviours which may not be available to them in their substantive post.

From a Trust perspective it is important that we offer varied development opportunities to help recruit and retain the best staff.

2. Purpose

The policy sets out the principles and the process for secondments together with the responsibilities for all the parties involved both internally and externally to the Trust. It also describes the conditions of the secondment, which must be agreed prior to the secondment starting.

A secondment may be proposed either by a Trust employee or by the Trust. There is no absolute right for any employee to be seconded from their post to another post either within the Trust itself or to another employer within or outside the NHS. Any request for a secondment is subject to the formal approval of the Trust and must be supported by the employee's line manager.

As a general rule all Trust secondment opportunities will be advertised internally to existing permanent staff of the Trust unless, there are exceptional circumstances, or an urgent operational need has arisen. In such situations this process will not be undertaken but any subsequent permanent appointment which arises from the secondment will be subject to normal recruitment processes the same as any other secondments which later becomes a permanent post.

In the absence of any other policy the general principles of this policy will apply to staff seconded to full time training courses.

3. Responsibilities

The Seconded is responsible for;

- Ensuring they consult with their manager and have their support prior to applying for any secondment.
- Adhering to KGH employment policies and procedures throughout the duration of any secondment.
- Adhering to any local policies or procedures are required by 'host' organisation.
- The Seconded fully understands and accepts before entering into an extension to a secondment or a secondment which is greater than 12 months in duration; that the Trust will not guarantee that they will return to their substantive post or a comparable post. In these circumstances that Trust will take every step to find suitable redeployment opportunities. If a seconded returns to a lower banded post, pay protection will not apply.

The Original/Substantive Manager is responsible for;

- Managers are required to consider seriously all requests to undertake a secondment or to accept a secondee, from within or outside the Trust. Template letters for supporting/refusing a secondment request can be found in Appendix 1 and 2 respectively.
- Agree the duration of the secondment between all parties; the host manager and the secondee.
- Agree the arrangements for updating the secondee regularly with relevant information about the Trust, their directorate/area, department or team.
- Fully document the secondment arrangements and ensure appropriate authorisation in line with delegated authority.
- Confirm all arrangements in writing to all parties, including details of the secondee's substantive post, hours, grade, what annual leave has been taken and how much entitlement remains and what guarantees they have on return from the secondment.
- Retain notes of all discussions, copies of letter and emails pertaining to the secondment on the secondees personal file.
- Inform the appropriate Finance and HR managers, completing relevant paperwork to formally authorise the secondment and generate a Secondment Agreement for the secondee and host employer.
- Or if the secondee is from within the Trust generate an Internal Secondment Agreement, see Appendix 5
- Ensure financial arrangements have been agreed between the Secondment and the Host Employer. This may result in the Trust continuing to pay the salary and any expenses due to the secondee during the period of the secondment and liaising with the finance department to recharge all of these costs to the host employer. In other cases, it may result in an exchange of staff for mutual benefit.
- Ensure that the secondee fully understands the Secondment Agreement and their responsibilities. Ensure that it is made clear and fully understood that;
 - **Secondment is 12 months or less**, they will have the right to return to their substantive post, unless it has been the subject of a Management of Change and will be managed under the policy.
 - Where the **Secondment is over 12 months**, the secondee **will not be able to return to their substantive post**; however, the Trust will look for redeployment within the organisation into a post of no less status than their previous substantive role. If the Trust can only redeploy into a post at one band lower pay protection will apply in line with current policy.
- Make it clear to the secondee that they, the substantive manager or the host employer can terminate the secondment at any time giving the required notice. In exceptional circumstances this right may be waived, and the secondment terminated immediately.
- Ensure that the secondment objective and programme of work is clear to all parties, it is related to Trust/directorates/team objectives and is consistent with the individual's personal development plan.

- Initiate discussions regarding indemnity. Indemnity must be provided by the host organisation in which the secondee is being placed. This must be confirmed before the secondment commences.
- The Substantive Manager on the return of the secondee to either their substantive post or deployed post should:
 - Discuss and agree the steps that should be put into place to maximise the benefits of the secondment to ensure intellectual property gained around knowledge and skills are shared.
 - Ensure the secondee is brought up to date with any additional information to what they have already been made aware of during the secondment period regarding the Trust, directorate, team/area.

The Host Manager (managing the secondment) is responsible for;

- Identifying a suitable secondee for the secondment opportunity. Secondment opportunities should follow the normal Trust recruitment procedure.
- Ensure that an honorary contract is issued for any individual being seconded from a non-NHS organisation together with the Secondment Agreement.
- Gain written confirmation from the seconding organisation that all necessary pre-employment checks, including Disclosure and Barring, OH screening, have been carried out and the secondee is fit to work in the seconded role. If there are any gaps it is the host manager's responsibility, with the assistance of HR where necessary, to ensure that this are completed before the secondee can start.
- Establish the conditions of the secondment arrangements, which should be included in the Secondment Agreement which all parties agree and sign.
- Ensure that the financial arrangements for the secondment have been agreed, including any reimbursement arrangements for the secondees salary and expenses.
- Ensure that the following reporting and management arrangements are in place during the secondment period:
 - Who will be the secondee's line manager.
 - Who will the secondee have responsibility for others and who they will be.
 - What induction and other training will be provided.
 - The policies and procedures the secondee must be aware of and comply with.
 - The equipment the secondee may use, who is responsible, and maintaining etc.
- Make sure that the Secondees on their first day brings in evidence of identity for the necessary passes etc to be actioned.
- Provide appropriate induction and mandatory training etc. for the secondee.
- Ensure regular supervision meeting and appraisals. Keep the secondee informed of their individual progress against agreed objectives. Host managers checklist can be found in Appendix 3.

4. Definitions

Secondment – is a temporary transfer or loan of an employee for a time limited to another part of the Trust or to another organisation (normally another NHS organisation but not exclusively). It also refers to the acceptance of a member of staff from another organisation into the Trust for a time limited period on a loan or on a temporary basis.

The Original/Substantive Manager – is the manager of the department/service/unit in which the employee is based prior to the secondment.

The Original Employer/Trust – is the Trust or employer with whom the employee holds a contract of employment.

Seconded – is the individual being seconded.

Host Manager – is the manager of the department/service/unit to which the employee is being seconded to.

Host Employer/Trust – refers to the organisation to which the employee is being seconded to KGH or a different NHS employer.

Substantive Post – is the original post that the employee was in (contractually) prior to the secondment.

5. How a Secondment Operates

A member of staff may only take up one secondment in any 12 month period.

The secondment may be on the same band/terms/conditions/hours or some/all of these may be amended but should not be a replacement for a formal 'Acting Up' arrangement which will be subject to an independent interview and agreement.

The minimum period of a secondment will be 3 months. The duration of the secondment should be specified in advance but would not normally be expected to last more than 12 months.

Secondments may be extended for a further specified period by agreement with all parties, namely the substantive manager, the host manager, the General Manager/Clinical Director or Divisional Director and the employee. In agreeing to an extension beyond 12 months the employee and management needs to understand that the employee will have no guarantee to return to their substantive role.

For Secondments over that do go beyond 12 months, including requests for an extension to an existing 12-month secondment, the Trust cannot guarantee that the employee concerned will return to their substantive post but a comparable post

where possible. If a comparable post is not available, the Trust will take every step to find suitable redeployment opportunities. If an individual returns to a lower banded post, pay protection will apply under this policy. Therefore, serious consideration should be given to such request both by the employee and the manager especially during periods of organisational change.

If a secondment for more than 12 months or an extension is agreed, the Secondment Agreement must stipulate that there can be no guarantee that the employee will return to their substantive but a comparable post. The service must also be mindful in these circumstances of the financial implications should redeployment not be found.

5.1 Considering a Secondment

Before applying for any secondment opportunity an employee must consult their line manager and obtain written support prior to applying for any secondment.

In considering an application for secondment the manager must seriously consider all requests to undertake secondment or to accept a secondee from within or outside the Trust. However, in doing so they must take into consideration, service commitments, current workforce pressures and arrangements already in place before taking a decision. A request can be refused, and it is important to explain the basis of the decision taken. See Appendices 1 and 2 for template letters for supporting/refusing a secondment requests.

Before a secondment is agreed, the employee and the line manager, on behalf of the Trust, must agree the terms of the secondment including the eventual return-to-work arrangements. The return within 12 months or from a 12 months secondment will usually be to the employees substantive post or may involve redeployment to a post of comparable nature in terms of location, job role, band and hours. See Appendix 4 for a template External Secondment Agreement and Appendix 5 for a template Internal Secondment Agreement.

5.2 Payment

For Trust staff seconded within KGH the employee (secondees) will remain on the payroll, (although pay may be transferred to a different budget code). For Trust staff seconded to a 'host' employer the Trust will retain the employee on the KGH payroll and continue to pay the employee following agreement with the host employer. The salary will then be recharged to the host employer for reimbursement.

Pay awards/annual increments will be applied and the original incremental date will remain the same during the secondment or be amended in line with AfC rules if the employee/seconded has been temporarily promoted.

Where an employee has applied for the secondment, no excess mileage applies. However, if the host organisation decides to pay excess mileage this will be a separate arrangement between the host organisation and seconded. It does not form part of the recharge arrangements with the Trust. Staff seconded in from an external organisation (excluding Section 75 secondments) will normally remain on the payroll of their substantive employer unless otherwise agreed within the finance departments.

5.3 During the Secondment

During the period of secondment, the employee remains contracted to their substantive employer and retains their normal terms and conditions of service other than for temporary variations in terms as may be agreed for the specific purpose and duration of the secondment.

The seconded must adhere to policies and procedure of the Trust throughout the duration of the secondment.

Where a Trust employee is seconded into an external organisation or the Trust receives a seconded in, each seconded must be compliant with the local policies and procedures of the host organisation.

5.4 Attendance

Throughout the secondment, the 'host' manager is responsible for ensuring that attendance records are maintained and that all approved (i.e., annual leave, sickness absence, compassionate leave) absences are reported to the substantive employer to ensure that accurate records are maintained, and relevant payments are made accordingly.

5.5 Performance Management

Performance management will be the responsibility of the host manager on behalf of the host employer. Should either party (seconded or host manager) have cause to be dissatisfied with the secondment, such as with regards to performance issues, work allocation and supervision etc they should raise the matter with each other informally in the first instance with the aim of finding a satisfactory resolution. If this is not achieved or the matter is of a particularly sensitive nature which would preclude such a discussion, the matter should be referred to the Trusts nominated HR

representative who will advise both parties and where appropriate. The matter may need to be addressed through the Trusts formal procedure.

Any formal disciplinary, capability or grievance processes will be organised and conducted in accordance with the original employment organisations formal procedure. The host employer (or management representative) may be asked to contribute to the proceedings as appropriate to the circumstances in question.

Performance Appraisals will take place in accordance with 'host employers' in-house systems but both the substantive manager and the 'host' manager will contribute to the process and for the Trust employee, the outcome will contribute to formal Trust records. E.g., Appraisal Plans.

5.6 Health and Safety

The 'host' employer will be responsible for ensuring any liability insurance and have a duty of care under the relevant Health and Safety legislation of the secondee. If a secondee is carrying out duties within a location agreed by the 'host' employer with responsibility for that location, then their 'Employer's Liability Insurance' covers the secondee.

5.7 Early Termination and Return

It is expected that formal arrangements to manage the return from secondment will be agreed prior to the secondment's commencement. However unexpected situations may arise which may require reconsideration, for example a work assignment or service pilot is terminated prematurely. In such circumstances the employee/secondees must notify their substantive employer without delay and notwithstanding sickness, annual leave or other approved leave of absence. They must ensure that they are available for work under the terms of their substantive contract.

An early termination of a secondment must be agreed by both the seconding manager/organisation and the host manager/organisation. Other than in exceptional circumstances the employee should be given a minimum of one month's notice of termination of the secondment.

The substantive manager, secondee and the host manager should meet once to a secondment has been formally offered to discuss the details of the secondment and complete the Secondment Agreement. The template Secondment Agreements for both external and internal secondments can be found in Appendix 4 and 5 respectively of this policy and should be completed one of these agreements in all instances where the Trust seconds an individual to an organisation (NHS or

otherwise) or another Trust department or receives an individual from an organisation or Trust department on secondment. Once the Secondment Agreement has been completed all parties should sign the document and each be issued with a copy and one should also be placed on the employee personal file.

6. Training

There is not a specific course for this policy, managers are coached and supported by HR during a change process.

7. Monitoring Compliance with the Document

Monitoring Compliance					
Process to be used for monitoring e.g. audit	Responsible individual / committee for carrying out monitoring	Frequency of monitoring	Responsible individual / committee for review the results	Responsible individual / committee for developing action plan	Responsible individual / committee for monitoring action plan
Secondment requests for a year or more	Recruitment Manager	Weekly	People Committee	Head of People Planning	People Committee
Contract types and reasons	Workforce Information	Monthly	People Committee	Head of People Planning	People Committee

8. References

CIPD Secondment Fact Sheet.

APPENDIX 1: (Template letter: Agreement to a Secondment request)

Date

Private & Confidential

Name

Address

Dear

Re: Application for Secondment

Thank you for informing me of your desire to apply for a secondment under the Trust's Secondment Policy, a copy enclosed.

After seriously considering this request, I will support your application for the secondment post of *(title of post)* with *(name of team/organisation)*, for the duration of *(number of months)*.

*(*Delete where applicable)* *I note that the duration of the secondment in question is more than 12 months and in line with the Trust policy I must make you aware that if you are successful and accept the secondment you **will not be able to return to your substantive post** at the end of the secondment period. The Trust will however look for redeployment within the organisation into a post of no less status than your present substantive role. If the Trust can only redeploy into a post at one band lower pay protection will apply in line with current policy. See section 4.2 of the enclosed policy.

Should your application be successful, I will contact your host employer to make further arrangements. In the meantime please update me on the progress of your application.

I wish you the very best of luck with your application.

Yours sincerely,

Name

Title

Enc. Secondment Policy

Cc Personal file

APPENDIX 2: (Template letter: Rejection of a Secondment request)

Date

Private & Confidential

Name

Address

Dear

Re: Application for Secondment

Thank you for informing me of your desire to apply for a secondment under the Trust's Secondment Policy, copy enclosed.

After serious consideration of your request, I am unfortunately unable to support your application for a secondment. The reason(s) for my decision are as follows:

- XXXXXXXXXXXXXXXX
- XXXXXXXXXXXXXXXX
- XXXXXXXXXXXXXXXX

I hope that you are able to understand and appreciate the reasons behind this decision, however if you feel that you have been unfairly treated you may contact a member of the Human Resources Department who will be able to advise you further.

Yours sincerely,

Name
Title

Enc. Secondment Policy

Cc Personal file

APPENDIX 3: Host Managers Checklist

Areas	Completed
Job Description, Person Specification and VR form drawn up and completed	
Clear objectives identified for the secondment period	
Ensure funds for the secondment are available and that any re-charge arrangements have been agreed with the appropriate finance manager	
Following approval, the Secondment opportunity advertised via the agreed Trust recruitment process (unless otherwise agreed by Deputy Head of Resourcing)	
Individual recruited through normal recruitment process	
Ensure that the individual has all necessary pre-employment checks and request confirmation (in writing) from seconding organisation	
Meet with the Secondee and their substantive manager to discuss the details of the secondment	
Complete Secondment Agreement, confirm terms and conditions with the Secondee and their substantive manager	
Prepare for the Secondee's arrival including; • Induction, local and Trust (where applicable) • Book onto necessary training course (including statutory/mandatory where necessary). • Check and agree annual leave where necessary • Payment/claim of expenses procedure where applicable etc. • Set up on normal supervision/appraisal process	

APPENDIX 4

External Secondment Agreement

This secondment agreement is issued and sets out the terms and conditions on which Kettering General Hospital seconds the under mentioned and should be read in conjunction with the existing terms and conditions of employment.

Name: *Name of Secondee*
Name of Employer: **Kettering General Hospital**
(hereinafter referred to as the “Trust”)

Title of Secondment Post: *Insert title*

Organisation seconded to: *Name of Organisation (hereinafter referred to as the*

“Host Organisation”)
Managerial Accountability to: *Name and Job Title (hereinafter referred to as Host*

(Host Organisation) **Manager)**

Professional Accountability: *Name and Job Title (hereinafter referred to as Host*

(Host Organisation if **Professional Manager)**

0 Period of Secondment: From: *date* **To:** *date*

1.1 Upon the expiry of the 12 month secondment period you will return to the Trust on your substantive or equivalent terms and conditions of employment unless a reorganisation affecting your original post takes place, in which case this will be dealt with in accordance with the Management of Organisational Change Policy.

The Trust cannot undertake to guarantee that you return to the post held immediately prior to the secondment but the actual arrangements will be discussed with you prior to your return.

1.2 Where the secondment is more than 12 months you **will not be able to return to your substantive post** at the end of the secondment period. The Trust will however look for redeployment within the organisation into a post of no less status than your present substantive role. If a comparable post is not available the Trust will take every step to find suitable redeployment opportunities. If you return to a lower banded post, pay protection will apply under the Secondment Policy. See section 4.2 of the Trust Secondment Policy.

1.3 The secondment may be ended before this time at the absolute discretion of the Trust and or Host Organisation by giving a minimum of one months’ notice to the Trust/Hosting Organisation and the named Secondee.

2.0 Hours of work

- 2.1 Whilst on secondment your normal hours of work will be XXX hours per week excluding meal breaks) (**delete if applicable* - *the full time standard hours for this post are XXX). The Host Organisation reserves the right to vary these hours following consultation with you.
- 2.2 During the secondment you may be asked to work additional hours by the Host Organisation to meet the demands of the service department. This will be agreed following consultation and agreement between you and the Host Organisation. Your Host Manager will determine arrangements for payment / time off in lieu. Any additional payments of this nature will be borne by the Host Organisation.

3.0 Duties and Location

- 3.1 You will normally be based at XXXX. However, as a term of your secondment you may also be required to work at or from any other of the Host Organisation's establishments or at such other location as is required for the proper performance of your duties or for your continuing personal or professional development.
- 3.2 In addition to your normal duties during the secondment, you may be required to undertake various other duties within your competence beyond the confines of your normal role. This will only take place following consultation and agreement between you and the Host Organisation.

4.0 Remuneration

- 4.1 Your salary during the period of secondment will be on Band XX, currently £ XX,XXX per annum. Following notification from the Trust to the Host Organisation, the Host Organisation is to pay the Trust on the date(s) as notified by the Trust the gross salary as indicated above plus Employer 'on costs'.
- 4.2 Your pay review date and the basis for that review will be as per your substantive contract with the Trust unless otherwise agreed.
- 4.3 You will also be eligible for the following additional payments: (*List*) e.g. **Overtime, unsociable hours enhancements* (**delete where applicable*)
- 4.4 In addition the Trust may charge to the Host Organisation the cost of payments by the Trust to the Seconded in respect of statutory and Trust pay and other charges agreed in advance between the Trust and the Host Organisation.
- 4.4.1 Those agreed charges shall be paid monthly by the Host Organisation, within 30 days of receipt of an itemised invoice from the Trust.

5.0 Annual Leave

- 5.1 Whilst on secondment all annual leave has to be booked with and agreed by the Host Manager. Your annual leave entitlement will be as per your contract of employment with the Trust.
- 5.2 You should keep your substantive manager informed of any leave taken in instances where the secondment is less than 12 months.
- 5.3 Whilst on secondment the public holidays recognised by the Host Organisation will apply and your entitlement to paid public holidays will be as per your contract of employment with the Trust.

6.0 Notice Periods

- 6.1 In the event you decide to resign from your employment with the Trust during the period of the secondment you will still be required to give the Trust period of notice as detailed in your contract of employment.
- 6.2 You must ensure that you provide your written resignation and notice to both your Substantive and Host Managers.

7.0 Pension

- 7.1 If you are currently a member of the NHS Pension Scheme this will not be affected by your secondment and contributions will continue to be deducted from your salary in accordance with the normal rules of membership.

8.0 Sickness or Other Absence (Maternity/Paternity/Adoption/Parental)

- 8.1 For the duration of the secondment you will be expected to comply with the Host Organisation's local leave and absence reporting arrangements. However, the Trusts Management of Sickness Absence Policy will still apply.
- 8.2 In all other respects, the Trust's normal policies on other types of absence from work will apply.

9.0 Policy and Procedure

- 9.1 All Trust employee management policies and procedures will apply during the secondment period. For example;
- 9.1.1 In the event that an issue arises that needs to be dealt with under the Trust's Disciplinary Policy or the Trusts associated procedures will apply. The Host Organisation must provide the Trust with access to any relevant information regarding any issues of conduct or capability.
- 9.1.2 In the event of an issue arises that needs to be dealt with under the grievance procedure; you should raise this with your Host Manager in the Host Organisation. If the Host Organisation cannot resolve the matter informally then the Trust's Grievance & Disputes Policy and Procedure will apply.

10.0 Personal and Professional Development

- 10.1 It is agreed that you will take responsibility for your own continued professional development whilst on secondment. You must ensure that you maintain a high standard of professional competence and conduct, taking into account the recommendations of your professional body and to whom you are professionally accountable to. The Host Organisation will support your continuing development and you should regularly review personal development plans with your Host Manager, who will advise on the support available.
- 10.2 In addition to any mandatory/statutory training, you will be expected to undertake training and development activities either deemed by the Host Organisation to be necessary whilst you are on secondment and or as identified in your Personal Development Plan and agreed with the Host Organisation and or the Trust.

10.3 Professional Registration and Revalidation

For substantive posts requiring professional registration and revalidation you are required to maintain that registration and revalidation during the secondment period. The Trust and Host Organisation will require periodic proof of continuing registration/revalidation from you. Failure to maintain registration/revalidation may lead to dismissal, subject to the Trust's Disciplinary Policy and associated procedures. However before taking any such action the Trust would give due regard to the circumstances involved, in accordance with the Trusts Professional Registration and Revalidation Policy.

10.4 Professional Indemnity

For posts requiring Professional Indemnity it is the responsibility of the employing authority or the individual practitioner, therefore, as the practitioner you are advised to maintain medical defence membership in order to ensure that you are covered for any work which does not fall within your NHS employment within the Trust or Host Organisation.

11.0 Health and Safety

- 11.1 You have a duty under health and safety legislation to take reasonable care for the health and safety of yourself and of others who may be affected by your actions or behaviours. Whilst on secondment you must familiarise yourself with the Host Organisation's Health and Safety at Work Policy/Statement and supporting policies and procedures applicable to your area of work. In addition, you have a responsibility to co-operate with the Host Organisation's management and others in meeting statutory requirements.
- 11.2 For the duration of the secondment you will be required to adhere to the Host Organisation's policy on smoking on their premises.

11.3 Neither the Trust nor the Host Organisation accepts any responsibility for damage to or loss of your personal property whilst at work or elsewhere. You are, therefore, recommended to consider insuring your own property.

12.0 Confidentiality

12.1 During the course of your secondment you may find yourself in possession of confidential information relating to patients, clients, staff or the working of the Host Organisation. The disclosure of any information could be construed as a breach of confidentiality.

Any such breach of confidentiality will normally be considered as a serious disciplinary offence, which could result in dismissal under the Trusts Disciplinary Policy and Procedure.

13.0 Standards of Business Conduct

13.1 Declaration of Interests

You must declare any controlling or significant financial interest held by you or any close relative or associate of yours in any organisation (e.g. private company, public sector organisation, voluntary organisation) which may compete for a contract to supply either goods or services to the Host Organisation and/or the Trust during the period of your secondment.

All such interest must be declared to your substantive Manager, in writing either on commencement of your secondment with the Host Organisation or upon acquisition of the interest. Failure to declare a relevant interest may lead to disciplinary action being taken against you.

13.1.2 In addition, you must not compete against the Trust or the Host Organisation to provide goods or services to a third party during the period of your secondment. The restriction applies to you in a personal or professional capacity and also to any organisation in which you hold a controlling or significant financial interest (e.g. private company, economy). Failure to comply with this requirement will normally be regarded as gross misconduct and will normally result in your dismissal.

13.2 Accepting or Offering Improper Inducements

It is agreed that you will not accept gifts, hospitality or any other benefit other than that of a token nature from any person or business with whom, you are involved during the period of your secondment with the Host Organisation. Modest hospitality and articles of low intrinsic value, such as diaries or calendars, or small tokens of gratitude from patients or their relatives may be accepted where refusal is likely to cause offence to the donor. In any case of doubt, you should seek the advice of your Manager. Under no circumstances should monetary gifts be accepted.

It is also agreed that you will not offer any benefit, whether financial or in kind, to any other party (other than promotional items approved by the Trust/Host Organisations).

Failure to comply with these requirements may leave to disciplinary action being taken against you.

13.3 Data security and ICT Equipment

The arrangements covering the use by staff of IT facilities for personal or business use are set out in the Trust's and the Host Organisations policies, copies of the Trust policies can be accessed on the intranet, those of the Host Organisation are available from your Host Manager. All documents, e-mails, records and other data created or received by staff on these facilities and all other usage of them are subject to monitoring by the Host Organisation. Documents, etc. held on a PC or memory stick are NOT private and may be accessed by officers of the Trust or Host Organisation.

13.4 Staff Identification and Personal Appearance

You will be required to comply with the Host Organisation's procedures in respect of staff identification and uniform/dress code.

13.5 Other Employment

As an NHS Employee, you are advised not to engage in outside employment that may conflict with your secondment or be detrimental to it. You must inform your Host Manager if you think you may be risking a conflict of interest in this area.

14.0 NHS Indemnity – Clinical Negligence

14.1 During your period of secondment the Host Organisation takes direct responsibility for costs and damages arising from clinical negligence where the Host Organisation is vicariously liable for the acts and omissions of its staff. Indemnity does not cover any private work or "good Samaritan" acts you may undertake, whether or not this work is on the Host Organisation's premises, and you are advised to ensure you have professional liability cover before undertaking any such work.

Indemnity does not apply to actions of an unprofessional or potentially criminal nature.

Signed (on behalf of Kettering General Hospital)

Trust..... Date.....

Name..... Designation.....

Signed (on behalf of the Host Organisation)

Organisation..... Date.....

Name..... Designation.....

I confirm I have received a copy of this document and agree to be seconded on the terms and conditions specified.

Signed (by employee)..... Date.....

Name (in capitals)

APPENDIX 5

Internal Secondment Agreement

This secondment agreement is issued and sets out the terms and conditions on which the named service areas below have agreed to second the named employee, and should be read in conjunction with the existing terms and conditions of employment.

Name of the Seconded:

Details of Substantive post:

Job Title:

Substantive Manager's Name and Job Title:

Location:

Hours per week and FTE:

Salary:

Band:

Allowances (where applicable):

Details of Secondment post:

Job Title:**Host Manager's Name and Job Title:**

Location:

Hours per week and FTE:

Salary:

Band:

Allowances:

Period of Secondment: From: _____ **To:** _____

1.1 Secondment arrangements

- 1.1 Upon the expiry of the 12 month secondment period you will return to your substantive or equivalent terms and conditions of employment unless a reorganisation affecting your original post takes place, in which case this will be

dealt with in accordance with the Management of Organisational Change Policy. **The Trust cannot undertake to guarantee that you return to the post held immediately prior to the secondment** but the actual arrangements will be discussed with you prior to your return.

- 1.2 Where the secondment is more than 12 months you **will not be able to return to your substantive post** at the end of the secondment period. The Trust will however look for redeployment within the organisation into a post of no less status than your present substantive role. If the Trust can only redeploy into a post at one band lower, pay protection will apply in line with Trusts current policy. See section 4.2 of the Trust Secondment Policy.
- 1.3 The secondment may be ended before this time at the absolute discretion of your Substantive Manager and Host Manager by giving a minimum of one months' notice to all parties concerned.

2.0 Duties and Location

- 2.1 The term of your secondment it may require you to work from another base for the duration of the secondment. In these cases, excess mileage does not apply, as you have chosen to take up the secondment and therefore have accepted the change in work base.
- 2.2 In addition to your normal duties during the secondment, you may be required to undertake various other duties within your competence beyond the confines of your normal role. This will only take place following consultation and agreement between you and the Host Manager.

3.0 Remuneration

- 3.1 Your pay review date and the basis for that review will be as per your substantive contract with the Trust unless otherwise agreed.

4.0 Annual Leave

- 4.1 Whilst on secondment all annual leave has to be booked with and agreed by the Host Manager. Your annual leave entitlement will be as per your contract of employment with the Trust.
- 4.2 You should keep your Substantive Manager informed of any leave taken in instances where the secondment is less than 12 months.

5.0 Notice Periods

- 5.1 In the event you decide to resign from your employment with the Trust during the period of the secondment you must ensure that you provide your written resignation and notice to both your Substantive and Host Managers. In all other respects your existing terms and conditions of employment will remain unchanged during the secondment.

Signed (Substantive Manager):.....Date:.....

Name (print):

Signed (Host Manager):..... Date:.....

Name (print):

Seconded:

I confirm I have received a copy of this document and agree to be seconded on the terms and conditions specified.

Signed: Date:.....

Name (print):

APPENDIX 6

Secondment Evaluation

This form should be completed by the Seconded and the Substantive Manager as soon as possible following the end of the secondment period. There is also a space for the Host Manager to make comments.

Secundee Details:

Name:

Substantive Job Role:.....

Job Role during secondment:

Host Organisation/Department/Area/Team:.....

Secondment from: To:

Objectives – What were the key objectives of the secondment?

-
-
-
-
-

Were these objectives met? Yes/No

If not, please explain why?

Experience gained from the secondment – please give a brief description

Reflection - How did these experiences make you feel and act differently?

Learning Outcomes – What have you learnt as a result of the secondment?

Value – Evaluate how the secondment has benefited;

- You as the secondee?
- The Trust?
- The Host Organisation/Department/Area or Team?

Actions – What action will you take now that the secondment is completed and how will you use your new skills, knowledge and experience?

Host Manager - comments regarding the secondment:

Secondees Signature:..... Date:.....

Substantive Manager: Date:

Host Manager: Date:

(Note: Once completed, please give a copy to the secondee and place one on their personal file)